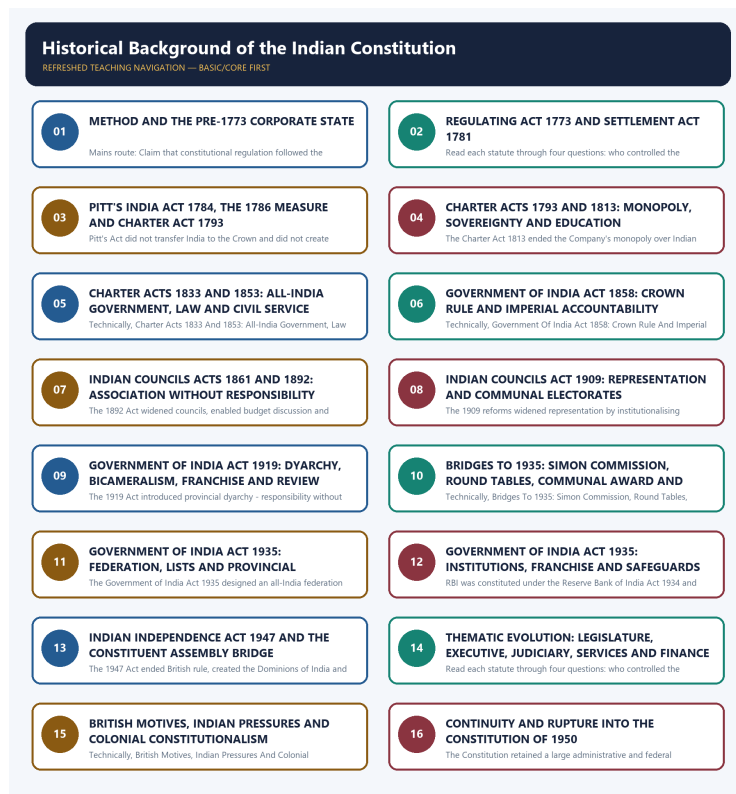


## SOLVED PRACTICE WORKBOOK

# Historical Background of the Indian Constitution - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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# Historical Background of the Indian Constitution - Solved Practice Workbook

## BASIC MCQS / REMEDIATION

### Practice rule and answer rotation

The 40 core questions cover nearly every subtopic; the eight remedials target the most persistent confusions. Answer placement follows strict A -> B -> C -> D rotation across the complete workbook.

#### Core MCQ 1

**Question.** Which event supplied the Company with a durable fiscal base in Bengal, Bihar and Orissa?

- A. Diwani grant of 1765
- B. Charter of 1600
- C. Battle of Plassey alone
- D. Government of India Act 1858

**Answer: A. Diwani joined revenue and civil authority to Company power.**

#### Core MCQ 2

**Question.** The Regulating Act 1773 created which office?

- A. Viceroy of India
- B. Governor-General of Bengal
- C. Governor-General of India
- D. Secretary of State for India

**Answer: B. The all-India title dates to 1833.**

#### Core MCQ 3

**Question.** What was the central purpose of the Settlement Act 1781?

- A. Abolishing the Company
- B. Creating separate electorates
- C. Clarifying Supreme Court jurisdiction and protecting official acts
- D. Introducing provincial autonomy

**Answer: C. It repaired executive-judicial and revenue-jurisdiction conflict.**

#### Core MCQ 4

**Question.** Under Pitt's India Act, political supervision was exercised through the:

- A. Council of India
- B. Federal Court
- C. Court of Wards
- D. Board of Control

**Answer: D. The Court of Directors retained commercial administration.**

#### Core MCQ 5

**Question.** The Charter Act 1813 ended Company monopoly except:

- A. Tea and trade with China
- B. Cotton and indigo
- C. Salt and opium
- D. Shipping and insurance

**Answer: A. This exception is the recurring PYQ distinction.**

#### Core MCQ 6

**Question.** Which change belongs to the Charter Act 1833?

- A. Provincial dyarchy began
- B. Governor-General of Bengal became Governor-General of India
- C. Separate Muslim electorates began
- D. Company was abolished

**Answer: B. William Bentinck became first Governor-General of India.**

#### Core MCQ 7

**Question.** Which change most precisely belongs to 1853 rather than 1833?

- A. End of Company trade
- B. All-India legislative centralisation
- C. Separation of legislative and executive work in the Governor-General's council
- D. Creation of Governor-General of India

**Answer: C. 1853 differentiated the legislative wing and established open competition principle.**

#### Core MCQ 8

**Question.** The Government of India Act 1858 abolished:

- A. Governor-General's office
- B. All civil services
- C. Provincial legislatures
- D. Court of Directors and Board of Control

**Answer: D. The Company system ended and Crown control operated through Secretary of State.**

#### Core MCQ 9

**Question.** The 1861 Act associated Indians with law-making primarily through:

- A. Nomination as non-official members
- B. Cabinet responsibility
- C. Separate electorates
- D. Universal election

**Answer: A. Association was nominated and limited.**

#### Core MCQ 10

**Question.** The 1892 Act is best linked to:

- A. Federal Court
- B. Budget discussion and questions to the executive
- C. Provincial autonomy
- D. Abolition of official majority

**Answer: B. Scrutiny expanded without responsible government.**

#### Core MCQ 11

**Question.** The constitutional novelty of the 1909 Act was:

- A. Provincial dyarchy
- B. Universal adult franchise
- C. Separate electorates for Muslims
- D. Three legislative lists

**Answer: C. 1909 communal electorate; 1919 dyarchy; 1935 provincial autonomy.**

#### Core MCQ 12

**Question.** S.P. Sinha's appointment is associated with:

- A. The Regulating Act
- B. The 1919 statutory commission
- C. The Independence Act
- D. The 1909 reform era

**Answer: D. He became the first Indian member of the Viceroy's Executive Council.**

**Core MCQ 13**

**Question.** Under the 1919 system, education and public health were generally:

- A. Transferred provincial subjects
- B. Princely-state subjects
- C. Excluded subjects
- D. Reserved federal subjects

**Answer: A. Ministers handled transferred fields, though finance and override limited them.**

**Core MCQ 14**

**Question.** Which statement about the Simon Commission is correct?

- A. It created the Poona Pact
- B. All seven members were British
- C. It was elected by Indian provincial councils
- D. It commenced the 1935 federation

**Answer: B. Its exclusion of Indians drove the boycott.**

**Core MCQ 15**

**Question.** The Poona Pact replaced separate electorates for depressed classes with:

- A. Nominated executive seats
- B. Universal adult franchise
- C. Reserved seats in joint electorates
- D. No representation

**Answer: C. This distinction matters for the later constitutional model.**

**Core MCQ 16**

**Question.** Which feature of the 1935 Act actually operated?

- A. All-India Federation
- B. Responsible federal cabinet
- C. Dyarchy at the centre
- D. Provincial autonomy

**Answer: D. The federation and central dyarchy never commenced.**

**Core MCQ 17**

**Question.** Under the 1935 Act, residuary powers were associated with the:

- A. Governor-General
- B. Provincial legislatures
- C. Federal legislature
- D. Federal Court

**Answer: A. The 2018 PYQ tests this point.**

**Core MCQ 18**

**Question.** Defence and external affairs under the proposed 1935 central scheme were:

- A. Placed under the Federal Court
- B. Reserved under the Governor-General
- C. Transferred to provincial ministers
- D. Controlled by the federal legislature

**Answer: B. Hence statement 2 of the 2024 PYQ is incorrect.**

#### Core MCQ 19

**Question.** Which body began functioning in 1937?

- A. Central Public Service Commission
- B. Board of Control
- C. Federal Court
- D. Supreme Court of Calcutta

**Answer: C. The Federal Court was a major judicial predecessor.**

#### Core MCQ 20

**Question.** The Indian Independence Act caused British paramountcy over princely states to:

- A. Continue until 1950
- B. Transfer automatically to Pakistan
- C. Transfer automatically to India
- D. Lapse

**Answer: D. Lapse created the political task of integration.**

#### Core MCQ 21

**Question.** Which Act first separated central and provincial subjects?

- A. Government of India Act 1919
- B. Indian Councils Act 1909
- C. Indian Independence Act 1947
- D. Indian Councils Act 1892

**Answer: A. The 1919 division preceded the three-list scheme of 1935.**

#### Core MCQ 22

**Question.** Bicameralism in six provinces is associated with:

- A. Regulating Act 1773
- B. Government of India Act 1935
- C. Charter Act 1853
- D. Indian Councils Act 1861

**Answer: B. The six were Bengal, Bombay, Madras, Bihar, Assam and United Provinces.**

#### Core MCQ 23

**Question.** Which is the best test of responsible government?

- A. Presence of Indian nominees
- B. Budget discussion alone
- C. Executive removal through an elected legislature
- D. A written statute

**Answer: C. Association and consultation do not equal political responsibility.**

#### Core MCQ 24

**Question.** The Court of Directors primarily retained which side after 1784?

- A. Federal adjudication

- B. Final imperial political supervision
- C. Provincial cabinet responsibility
- D. Commercial and Company administration

**Answer: D. Political supervision shifted to the Board of Control.**

**Core MCQ 25**

**Question.** Which Act recognised the portfolio system and restored provincial legislative powers?

- A. Indian Councils Act 1861
- B. Charter Act 1813
- C. Indian Councils Act 1909
- D. Government of India Act 1935

**Answer: A. It combined association with legislative decentralisation.**

**Core MCQ 26**

**Question.** The Central Public Service Commission was established in:

- A. 1909
- B. 1926
- C. 1854
- D. 1937

**Answer: B. The 1919 Act provided the institutional path.**

**Core MCQ 27**

**Question.** Which is a democratic rupture rather than colonial continuity?

- A. Public Service Commission
- B. Three-list distribution
- C. Universal adult franchise
- D. Office of Governor

**Answer: C. The colonial franchise remained restricted.**

**Core MCQ 28**

**Question.** The most accurate description of colonial constitutionalism is:

- A. Absence of any legal institutions
- B. Full democracy under imperial rule
- C. Immediate federal sovereignty in 1935
- D. Rule through statutes and institutions without popular sovereignty

**Answer: D. Legalisation and institutionalisation did not equal self-government.**

**Core MCQ 29**

**Question.** Which statement best distinguishes a reserved seat from a separate electorate?

- A. A reserved seat can operate within a common electorate
- B. They are always identical
- C. A separate electorate uses no electoral roll
- D. Reserved seats exclude community candidates

**Answer: A. The Poona Pact is the key example.**

**Core MCQ 30**

**Question.** Which Act removed the Company's remaining commercial character?

- A. Government of India Act 1858
- B. Charter Act 1833

- C. Charter Act 1853
- D. Charter Act 1813

**Answer: B. 1813 narrowed monopoly; 1833 ended trade; 1858 ended Company government.**

**Core MCQ 31**

**Question.** Which 1935 feature did not commence because princely-state accession conditions were unmet?

- A. Federal Court
- B. Provincial elections
- C. All-India Federation
- D. Provincial autonomy

**Answer: C. Provided and operated must be kept distinct.**

**Core MCQ 32**

**Question.** Which is the best qualified continuity thesis?

- A. Separate electorates were retained nationally
- B. The Constitution copied 1935 unchanged
- C. No colonial institution survived
- D. Administrative structures continued but democratic legitimacy and rights transformed them

**Answer: D. Continuity and rupture must both be stated.**

**Core MCQ 33**

**Question.** The 1781 Act instructed the Calcutta Supreme Court to apply:

- A. Personal law to Hindu and Muslim litigants in relevant matters
- B. Universal civil code
- C. Only English criminal law in every dispute
- D. The 1935 federal lists

**Answer: A. This was part of jurisdictional clarification.**

**Core MCQ 34**

**Question.** The Charter Act 1853 extended Company government:

- A. For exactly twenty years
- B. Without a fixed renewal period
- C. Until 1947 by irrevocable grant
- D. Only until the 1857 Revolt

**Answer: B. Parliament could terminate it at any time.**

**Core MCQ 35**

**Question.** Which sequence is correct?

- A. 1909 dyarchy; 1919 autonomy; 1935 electorate
- B. 1909 autonomy; 1919 electorate; 1935 dyarchy in provinces
- C. 1909 separate electorate; 1919 provincial dyarchy; 1935 provincial autonomy
- D. 1909 federation; 1919 Crown rule; 1935 Diwani

**Answer: C. This is the core close-option sequence.**

**Core MCQ 36**

**Question.** What is the strongest limitation on calling 1892 responsible government?

- A. The Company still governed India
- B. There were no Indians anywhere
- C. No budget could be mentioned



- D. The executive was not removable by the councils

**Answer: D. Official control and executive irresponsibility remained.**

#### Core MCQ 37

**Question.** The first Viceroy of India was:

- A. Lord Canning
- B. Warren Hastings
- C. Lord Minto
- D. William Bentinck

**Answer: A. Canning became Crown representative after 1858.**

#### Core MCQ 38

**Question.** The phrase 'Governor-General of India' first belongs to:

- A. Charter Act 1793
- B. Charter Act 1833
- C. Regulating Act 1773
- D. Pitt's India Act 1784

**Answer: B. This was the exact 2023 Prelims demand.**

#### Core MCQ 39

**Question.** The proposed central dyarchy under 1935 would have divided:

- A. Princely states into elected provinces
- B. Courts into civil and criminal branches
- C. Federal subjects into reserved and transferred categories
- D. Provincial voters into rural and urban lists

**Answer: C. It never operated.**

#### Core MCQ 40

**Question.** Which statement about the RBI is most precise?

- A. The Federal Court created the RBI
- B. The 1935 Act alone was the RBI's constituting statute
- C. The RBI began under the 1919 Act
- D. It was created under the RBI Act 1934 and began in 1935 within the wider constitutional settlement

**Answer: D. Avoid the textbook shorthand that the 1935 Act itself created the RBI.**

### Remedial set - target recurring errors

#### Remedial MCQ 1

**Question.** The Regulating Act's executive title was:

- A. Governor-General of Bengal
- B. Secretary of State
- C. Governor-General of India
- D. Viceroy

**Answer: A. 1773 versus 1833.**

#### Remedial MCQ 2

**Question.** The Company was abolished by:

- A. Charter Act 1833
- B. Government of India Act 1858

- C. Pitt's India Act
- D. Charter Act 1853

**Answer: B. 1853 changed council and recruitment, not sovereignty.**

#### Remedial MCQ 3

**Question.** Dyarchy in provinces belongs to:

- A. Independence Act 1947
- B. Councils Act 1909
- C. Government of India Act 1919
- D. Government of India Act 1935

**Answer: C. 1935 abolished provincial dyarchy.**

#### Remedial MCQ 4

**Question.** The 1935 federation:

- A. Excluded princely states by design
- B. Operated from 1937
- C. Ended in 1939 after full implementation
- D. Was provided for but never commenced

**Answer: D. Accession condition was unmet.**

#### Remedial MCQ 5

**Question.** Under 1909, representation for Muslims used:

- A. Separate electorates
- B. Reserved seats in a universal joint electorate
- C. Nomination only
- D. No community classification

**Answer: A. Do not collapse electoral devices.**

#### Remedial MCQ 6

**Question.** The Poona Pact used:

- A. Separate electorates for depressed classes
- B. Reserved seats in joint electorates
- C. No reserved seats
- D. A federal communal chamber

**Answer: B. It changed the Communal Award arrangement.**

#### Remedial MCQ 7

**Question.** The Court of Directors after 1784:

- A. Was abolished immediately
- B. Became the Federal Court
- C. Continued alongside the Board of Control
- D. Controlled only provincial courts

**Answer: C. Dual control lasted until 1858.**

#### Remedial MCQ 8

**Question.** Provincial autonomy is associated with:

- A. Government of India Act 1919
- B. Councils Act 1892
- C. Charter Act 1813

- D. Government of India Act 1935

**Answer: D. 1919 equals provincial dyarchy.**

## PYQS AND ANSWER PRACTICE

### PYQ provenance audit

- **2018 Prelims GS-I Q38:** cross-owned by Modern Indian History; official paper verified locally; official key unavailable locally, so the answer remains prominently inferred.
- **2019 Prelims GS-I Q4:** cross-owned by Modern Indian History; official paper verified locally; official key unavailable locally, so the answer remains prominently inferred.
- **2023 Prelims GS-I Q50:** cross-owned by Modern Indian History; official paper verified locally; official key unavailable locally, so the answer remains prominently inferred.
- **2024 Prelims GS-I Q62:** direct Polity 01 owner; official Set-A paper and official Set-A key verified locally.
- **Direct Mains PYQ finding:** none in the audited local historical-background GS-I/GS-II corpus. The six questions below are explicitly original practice, never labelled PYQs.

### PYQ 1. 2018 Prelims GS-I Q38 - CROSS-OWNED by Modern History; relevant to Polity 01

[ANALYSIS] Solve by identifying the constitutional device, operational status and closest distractor.

[LIMIT] Cross-owned items retain their true Modern History owner even when they are useful here.

#### Teaching and analysis

- In the Federation established by The Government of India Act of 1935, residuary powers were given to the: (a) Federal Legislature (b) Governor General (c) Provincial Legislature (d) Provincial Governors

**Answer: B. [LIMIT] The official answer key is unavailable locally; this is INFERRED - NOT OFFICIALLY VERIFIED, very high confidence. The Governor-General held the residuary allocation. [LIMIT] The federal scheme itself never commenced. The item is locally verified from the official scanned paper; the repository routing assigns true ownership to Modern Indian History Topic 24.**

- Why this earns marks: The solution states the exact provision, eliminates the close distractor, preserves answer-key status and labels ownership.
- **How to improve this answer:** Quote the operative distinction: the Act provided for federation, while defence and external affairs remained discretionary Governor-General functions.
- **How to improve this answer:** Write the title sequence in the margin-GG of Bengal (1773), GG of India (1833), Viceroy (1858)-before choosing.
- **How to improve this answer:** Explicitly eliminate statement 3 by distinguishing Crown sovereignty from direct parliamentary control of Indian revenues.
- **How to improve this answer:** Add a one-line distinction between the legal allocation of residuary power and the fact that the federal scheme never commenced.

**Mains route:** Use mistakes to revise the provision -> significance -> limitation chain.

### PYQ 2. 2019 Prelims GS-I Q4 - CROSS-OWNED by Modern History; relevant to Polity 01

[ANALYSIS] Solve by identifying the constitutional device, operational status and closest distractor.

[LIMIT] Cross-owned items retain their true Modern History owner even when they are useful here.

#### Teaching and analysis

- Consider the following statements about 'the Charter Act of 1813': 1. It ended the trade monopoly of the East India Company in India except for trade in tea and trade with China. 2. It asserted the sovereignty of the British Crown over the Indian territories held by the Company. 3. The revenues of India were now controlled by the British Parliament. Which of the statements given above are correct? (a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

**Answer: A. Statements 1 and 2 are correct; statement 3 overstates parliamentary revenue control. [LIMIT] The local official paper is verified, but the official answer key is unavailable locally; answer is INFERRED - NOT OFFICIALLY VERIFIED, high confidence. True routing owner: Modern Indian History Topic 06.**

- Why this earns marks: The solution states the exact provision, eliminates the close distractor, preserves answer-key status and labels ownership.

**Mains route:** Use mistakes to revise the provision -> significance -> limitation chain.

### **PYQ 3. 2023 Prelims GS-I Q50 - CROSS-OWNED by Modern History; relevant to Polity 01**

[ANALYSIS] Solve by identifying the constitutional device, operational status and closest distractor.

[LIMIT] Cross-owned items retain their true Modern History owner even when they are useful here.

#### **Teaching and analysis**

- By which one of the following Acts was the Governor General of Bengal designated as the Governor General of India? (a) The Regulating Act (b) The Pitt's India Act (c) The Charter Act of 1793 (d) The Charter Act of 1833

**Answer: D. The Charter Act 1833 created the Governor-General of India; William Bentinck was first. [LIMIT] Local official paper verified; official key unavailable locally, so this is INFERRED - NOT OFFICIALLY VERIFIED, very high confidence. True routing owner: Modern Indian History Topic 06.**

- Why this earns marks: The solution states the exact provision, eliminates the close distractor, preserves answer-key status and labels ownership.

**Mains route:** Use mistakes to revise the provision -> significance -> limitation chain.

### **PYQ 4. 2024 Prelims GS-I Q62 - DIRECT owner Polity 01**

[ANALYSIS] Solve by identifying the constitutional device, operational status and closest distractor.

[LIMIT] This is the direct topic-owned PYQ; wording and Set-A key are verified from the locally held official paper and key.

#### **Teaching and analysis**

- With reference to the Government of India Act, 1935, consider the following statements: 1. It provided for the establishment of an All India Federation based on the union of the British Indian Provinces and Princely States. 2. Defence and Foreign Affairs were kept under the control of the federal legislature. Which of the statements given above is/are correct? (a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

**Answer: A. Statement 1 is correct as a provision even though the federation never commenced. Statement 2 is false because defence and foreign affairs were reserved under the Governor-General. The local official Set-A paper and official Set-A key are present and verified.**

- Why this earns marks: The solution states the exact provision, eliminates the close distractor, preserves answer-key status and labels ownership.

**Mains route:** Use mistakes to revise the provision -> significance -> limitation chain.

### **Original solved Mains model 1 - 10 marks / 150 words**

**Question.** Examine how the Charter Acts transformed the East India Company from a commercial corporation into an administrative agency.

**Demand.** Show a process, use named Acts, and distinguish commercial retreat from sovereign transfer.

#### **Model solution**

The Charter Acts progressively stripped the East India Company of commercial privilege while making its governmental machinery more centralised and public in character. The Charter Act 1813 ended the Company's monopoly over Indian trade, except tea and trade with China, and expressly asserted Crown sovereignty over Company territories. The Charter Act 1833 completed the commercial break: it ended the Company's trading activity, made the Governor-General of Bengal the Governor-General of India, and centralised legislative power for British India. The Charter Act 1853 then separated the legislative and executive functions of the Governor-General's council, enlarged the legislative element and established open competitive recruitment in principle, followed by the Macaulay

Committee of 1854.

These changes made the Company increasingly resemble an administrative agency rather than a merchant sovereign. Yet the transformation remained colonial and politically irresponsible: Indians did not acquire popular control, and the Company itself survived until the Government of India Act 1858. Thus, 1833 ended the Company's commercial character, whereas 1858 completed the sovereign transfer to the Crown.

**Why this earns marks.** It answers the transformation demand through 1813 -> 1833 -> 1853, names what each provision proves, and qualifies the argument by separating commercial termination from the end of Company rule.

**How to improve this answer.** Compress the first paragraph to one clause per Act and reserve the final two sentences for the 1833-versus-1858 distinction.

### Original solved Mains model 2 - 10 marks / 150 words

**Question.** Distinguish a separate electorate from a reserved seat and explain the constitutional significance of the Poona Pact.

**Demand.** Define both devices, locate the 1932 transition and state the later constitutional lesson.

#### Model solution

A separate electorate creates a community-specific electoral roll: members of that community elect their own representative. A reserved seat earmarks representation for a community, but the election may occur within a common or joint electorate. The Indian Councils Act 1909 introduced separate electorates for Muslims, and the 1919 reforms extended communal electorates to other groups. Ramsay MacDonald's Communal Award of 1932 proposed separate electorates for the depressed classes.

The Poona Pact followed Gandhi's fast in Yerawada Jail and replaced the depressed-class separate electorate with reserved seats within a joint Hindu electorate. Its constitutional significance lies in separating guaranteed representation from electoral segregation. The Constitution later rejected separate electorates and universalised the franchise, while retaining reserved legislative seats for Scheduled Castes and Scheduled Tribes within a common electorate.

The Pact was not equivalent to modern universal political equality: it arose within a restricted colonial franchise and under intense political pressure. Nevertheless, it supplied an important bridge from communal electoral separation to representational reservation without separate nation-like electorates.

**Why this earns marks.** The answer defines the devices, uses the 1909-1919-1932 sequence as evidence, and ends with a precise continuity-and-rupture verdict.

**How to improve this answer.** Name "joint electorate with reserved seats" in the opening definition and avoid implying that the Pact itself created universal franchise.

### Original solved Mains model 3 - 15 marks / 250 words

**Question.** Analyse why dyarchy under the Government of India Act 1919 failed to create responsible provincial government.

**Demand.** Explain the mechanism, the incentives it created, its limited contribution and the reason for replacement in 1935.

#### Model solution

Dyarchy, meaning dual government, divided provincial subjects into transferred and reserved categories. Transferred subjects such as education, public health, agriculture and local government were administered by Indian ministers answerable to provincial legislatures. Reserved subjects such as finance, police and land revenue remained with the Governor and his executive council. This division created responsibility without effective power.

First, ministers were publicly answerable for welfare fields but lacked reliable control over finance, coercion and the senior bureaucracy. A health or education programme could therefore be blamed on an Indian minister even when the fiscal levers remained in reserved hands. Second, the Governor retained overriding and special powers, which reduced the legislature's capacity to enforce collective responsibility. Third, the limited property-, tax- and education-based franchise narrowed political accountability. Fourth, splitting interdependent departments obstructed

coordination: agriculture, irrigation, land revenue and finance could not be governed coherently across the reserved-transferred boundary.

The experiment was not institutionally empty. It widened Indian participation in provincial administration, accustomed legislatures to questions and budgets, and supplied practical experience of ministerial office. Yet participation was not responsible government because the executive was neither unified nor fully removable through representative control.

The Government of India Act 1935 therefore abolished dyarchy in the provinces and introduced provincial autonomy, although gubernatorial safeguards remained. Dyarchy failed because it separated blame from authority; its limited training value could not cure the structural contradiction of ministers answerable to legislatures but dependent on an overriding Governor.

**Why this earns marks.** The answer moves from definition to mechanism, named subject examples, institutional effects, qualification and the 1935 remedy.

**How to improve this answer.** Use a two-column reserved/transferred mini-table in rough work, then demonstrate the finance-welfare coordination failure with one example.

### Original solved Mains model 4 - 15 marks / 250 words

**Question.** Trace the evolution of representative institutions in British India from 1861 to 1935. Did representation become responsible government?

**Demand.** Build a graded ladder and evaluate rather than merely narrate.

#### Model solution

Representative development under Crown rule was a controlled progression from association to scrutiny, election and limited provincial responsibility. The Indian Councils Act 1861 associated Indians with law-making through nominated non-official members and restored legislative powers to Bombay and Madras. It widened consultation but created neither election nor executive responsibility. The 1892 Act enlarged councils, permitted budget discussion and questions, and used recommendation-based indirect election without employing the word “election”; official control remained.

The 1909 Morley-Minto reforms enlarged councils and introduced separate Muslim electorates. They developed electoral politics but also constitutionalised communal representation; the Centre retained an official majority. The 1919 Montagu-Chelmsford reforms introduced direct elections, central bicameralism and provincial dyarchy. Indian ministers became responsible for transferred fields, but Governors controlled reserved subjects, finance and overriding safeguards. The Simon Commission, Round Table process, Communal Award and Poona Pact then exposed the unresolved questions of responsibility, federalism and community representation.

The Government of India Act 1935 widened the franchise, created provincial autonomy and enabled ministries responsible to provincial legislatures. However, the franchise remained restricted, Governors retained special responsibilities, separate electorates continued, and the proposed federal executive was not popularly sovereign; the All-India Federation never commenced.

Thus representation broadened substantially, but responsible government emerged only partially at the provincial level. The Constitution completed the trajectory through universal adult franchise, joint electorates, collective responsibility and popular sovereignty while retaining reservations within common electorates for SCs and STs.

**Why this earns marks.** It converts the 1861 -> 1892 -> 1909 -> 1919 -> 1935 sequence into a test of accountability and states the precise point at which representation remained short of sovereignty.

**How to improve this answer.** Keep every stage tied to the accountability test: selection, deliberation, executive removability and breadth of franchise.

### Original solved Mains model 5 - 20 marks / 250 words

**Question.** "The Constitution is both a culmination of colonial constitutional development and a repudiation of colonial rule." Discuss.

**Demand.** Establish continuity and rupture with named provisions, then deliver a graded verdict.

#### Model solution

The Constitution did not begin on a blank page, but neither did it reproduce colonial rule. It inherited an administrative and institutional spine built through British statutes and relocated that machinery within a sovereign, republican and rights-based order.

**Structural continuity.** The Regulating Act 1773 began statutory centralisation through the Governor-General of Bengal and a Supreme Court at Calcutta. Pitt's India Act 1784 established political supervision over Company administration. The Charter Act 1833 created the Governor-General of India and centralised legislation; the 1853 Act differentiated legislative and executive work and advanced competitive civil-service recruitment. The Councils Acts 1861 and 1892 introduced the portfolio principle, Indian association, budget discussion and questions. The 1919 Act separated central and provincial subjects, introduced bicameralism and provided the path to the Central Public Service Commission. Above all, the Government of India Act 1935 supplied the three-list logic, Governors, provincial autonomy, the Federal Court and public service commissions. The Independence Act 1947 made the Constituent Assemblies sovereign legislatures.

**Democratic rupture.** Colonial institutions operated through official majorities, restricted franchise, separate electorates, reserved subjects, gubernatorial safeguards and imperial sovereignty. The Constitution rejected these normative foundations through "We, the People", universal adult franchise, single citizenship, joint electorates, collective ministerial responsibility, Fundamental Rights, constitutional remedies and an independent Election Commission. SC/ST reservations were placed within common electorates rather than separate communal rolls.

**Qualification.** The rupture was not the rejection of every inherited form. Governors, services, courts and legislative lists were retained but constitutionally limited and democratised. Conversely, the 1935 federal plan never operated, so its influence is architectural rather than evidence of pre-1947 federal democracy.

The Constitution is therefore the culmination of colonial development in institutional structure and its repudiation in political legitimacy: it converted an imperial apparatus into a government deriving authority from citizens.

**Why this earns marks.** It answers both halves, uses more than eight named provisions, distinguishes retained forms from rejected principles, and ends with a calibrated continuity-versus-legitimacy verdict.

**How to improve this answer.** In 250 words, use only six high-yield Acts, organise them under continuity/rupture, and retain the federation-never-operated qualification.

### Original solved Mains model 6 - 20 marks / 250 words

**Question.** Trace the movement from centralisation to devolution between 1773 and 1947. How did this history shape India's strong-Centre federalism?

**Demand.** Periodise the Acts, link mechanism to constitutional inheritance, and avoid claiming that colonial devolution was popular sovereignty.

#### Model solution

British constitutional development combined two contrary movements: early centralisation for imperial control and later, cautious devolution for governability and political accommodation. Their coexistence helps explain why the Constitution adopted a federation with a strong Union.

**Centralisation, 1773-1858.** The Regulating Act 1773 made the Governor-General of Bengal superior to Bombay and Madras in key matters. Pitt's India Act 1784 placed political, military and revenue policy under the Board of Control while preserving Company machinery. The Charter Act 1833 completed legislative centralisation by creating the Governor-General of India and depriving Bombay and Madras of legislative power. The 1853 Act differentiated the central legislature, and the Government of India Act 1858 replaced dual control with a Viceroy and a Secretary of State responsible to the British Cabinet. These measures built a unitary command, civil service and central law-making state.



**Devolution and representation, 1861-1935.** The Councils Act 1861 restored legislative powers to Bombay and Madras and enabled new provincial councils. The 1892 and 1909 Acts enlarged legislative participation but retained executive supremacy. The 1919 Act separated central and provincial subjects and introduced provincial dyarchy. The 1935 Act replaced provincial dyarchy with autonomy and proposed an All-India Federation with Federal, Provincial and Concurrent Lists. Yet residuary authority remained with the Governor-General, Governors retained safeguards, and the federation never commenced.

**Impact on 1950.** The Constitution retained the territorial administration, all-India services, Governors, judicial hierarchy and distributed legislative lists, but democratised them through elected governments and judicially enforceable limits. Partition, integration of princely states and the need for coordinated development strengthened the case for Union powers. At the same time, State Lists, elected state ministries and constitutional finance embodied the devolution strand.

Thus strong-Centre federalism was not copied from one Act. It was the constitutional synthesis of a centralised administrative inheritance and a long but incomplete provincialisation process, transformed by popular sovereignty and responsible government.

**Why this earns marks.** The answer periodises both trajectories, links each named Act to a mechanism, explains the 1950 synthesis and qualifies colonial devolution as limited and safeguarded.

**How to improve this answer.** In 250 words, prioritise the 1773-1833 centralisation chain, the 1919-1935 devolution chain and two reasons for the Constitution's strong Union.